

26STCV07380 26STCV07380

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV07380

AFSHIN

FIROUZI vs ROCKSTAR LIVING ENTERPRISE, LLC, et al.

July

14, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO COMPEL ARBITRATION OF PLAINTIFF'S CLAIMS.

RULING:

The Court denies the Motion.

Plaintiff to give notice.

I.

BACKGROUND

On March 6, 2026, AFSHIN FIROUZI (Plaintiff) filed a Complaint against ROCKSTAR LIVING ENTERPRISE, LLC, et al. (Defendants), listing Causes of Action for:

(1)

FAILURE TO PAY OVERTIME WAGES;

(2)

FAILURE TO PROVIDE MEAL AND REST PERIODS;

(3)

FAILURE TO PAY WAGES AT TERMINATION AND WAITING TIME PENALTIES;

(4)

FAILURE TO PROVIDE ACCURATE WAGE STATEMENTS;

(5)

HOSTILE WORK ENVIRONMENT HARASSMENT;

(6)

WHISTLEBLOWER RETALIATION;

(7)

RETALIATION (FEHA);

(8)

FAILURE TO PREVENT;

(9)

WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY;

(10)

UNFAIR BUSINESS PRACTICES;

(11)

DISCRIMINATION (FEHA); and

(12)

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS.

Plaintiff alleges that Defendants committed various wage-and-hour violations, and wrongfully terminated his employment after he complained about a Manager's verbal and physical abuse.

On May 11, 2026, Defendants filed the Motion to Compel Arbitration, on grounds that Plaintiff signed an applicable Arbitration Agreement and there is no unconscionability involved.

Plaintiff opposes, based upon counterarguments such as that Defendants rushed his signing of many documents he was unable to read or understand and there is unconscionability.

II.

LEGAL STANDARD

Parties

petitioning to compel arbitration have the burden to prove the existence of a valid arbitration agreement by a preponderance of evidence, and parties opposing have the burden to prove by a preponderance of the evidence any fact necessary to a defense. (Gonzalez v. Nowhere Beverly Hills LLC (2024) 107 Cal.App.5th 111, 121.)

Arbitration is a matter of contract, and a party cannot be required to arbitrate a dispute unless agreed. (Ajida Technologies, Inc. v. Roos Instruments, Inc. (2001) 87 Cal.App.4th 534, 541; Lopez v. Charles Schwab & Co., Inc. (2004) 118 Cal.App.4th 1224, 1233.) "If a party can show that it did not know it was signing a contract, or that it did not enter into a contract at all, both the contract and its arbitration clause are void for lack of mutual assent." (Saint Agnes Medical Center v. PacifiCare of Cal. (2003) 31 Cal.4th 1187, 1200.)

"[I]f substantial evidence supports the trial court's determination that a valid agreement to

arbitrate exists, an appellate court will affirm that determination.” (Banner Ent., Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 357. Accord, Zavala v. Scott Bros. Dairy, Inc. (2006) 143 Cal.App.4th 585, 589-590.) ““An order denying arbitration is generally reviewed for abuse of discretion. [Citation.] The de novo standard of review applies only where the trial court’s denial of a petition to arbitrate presents a pure question of law.”” (Barsegian v. Kessler & Kessler (2013) 215 Cal.App.4th 446, 450.) Justices review, for substantial evidence, orders denying motions to compel arbitration that are based upon factfinding. (Arzate v. ACE American Ins. Co. (2025) 108 Cal.App.5th 1191, 1198.)

III.

ANALYSIS

A. Arbitration

Agreement

Defendants contend that

Plaintiff’s Declaration is not credible under the circumstances and contains contradictions, regarding purportedly insufficient time to review documents and inability to read English. (Reply, p. 2.)

Plaintiff responds that

he has limited English skills, and Defendants required and rushed the employment process of signing at least 11 documents.

Statements in briefs

filed are not supportive evidence. (E.g., Turrieta v. Lyft, Inc. (2024)

16 Cal.5th 664, 697.) Facts must be stated in a declaration do not show

personal knowledge, and otherwise is incompetent proof. (Snider v. Snider (1962) 200 Cal.App.2d 741, 754.) Declarations based upon information and belief are permissible depending on the context. (City of Santa Cruz v. Municipal Court (1989) 49 Cal.3d 74, 86, 87. Accord, Humphrey v. Appellate Division (2002) 29

Cal.4th 569, 573.) Declarations based upon information and belief are

inadmissible for purposes of proving the probable validity of a claim, such as to trials or SLAPP motions. (Evans v. Unkown

(1995) 38 Cal.App.4th 1490, 1498 (“Evans”). Accord, HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212 [citing Evans, supra]; Tuchscher Dev. Ent., Inc. v. San Diego Unif. Port Dist. (2003) 106

Cal.App.4th 1219, 1238 [citing Evans,

supra].) “Declarations

based on information and belief are insufficient to satisfy the burden of

either the moving or opposing party on a motion for summary judgment or adjudication.” (Lopez v. University Partners (1997) 54 Cal.App.4th 1117, 1124.)

Doubts or ambiguities

regarding the scope of arbitration provisions are not resolved in favor of arbitrability, where supportive provisions “do not exist or were so poorly drafted that another party cannot be presumed to have agreed to them.” (Thompson v. Toll Dublin, LLC (2008) 165 Cal.App.4th 1360, 1370 [declining to extend the policy favoring arbitration of EFund Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1330].)

An agreement's signature

can be shown by having a judge compare a genuine signature to that on an agreement, or by a declaration of a custodian of records. (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal.App.5th 158, 170 [proponent of arbitration failed to file any such authenticating proof, including because agreement's signature and declaration signature had some dissimilarities].)

Here, the Court finds

that Plaintiff's Declaration is more credible than Defendant's Declaration and Supplemental Declaration, where Plaintiff's is based upon personal knowledge, but the Defendants' declarations are based upon general employer procedure and expressly “information and belief.” Specifically, Plaintiff denies assenting or signing the agreement, including by stating that the first time he saw the Arbitration Agreement was with Defendants' Motion. (E.g., Plaintiff's Declaration, ¶ 24.) Additionally, the Court observes that Plaintiff's signature on his Declaration does not match the signatures on the employment documents, and the “Employee” line at the top of the first page of the Arbitration Agreement ambiguously was left blank as to who the contracting party was. (E.g., Plaintiff's Declaration, Exhibit A.)

B. Unconscionability

Defendants argue that

procedural unconscionability is not present, because Plaintiff had time to review the agreement that includes an opt-out provision. And Defendants maintain that Plaintiff referenced no substantively unconscionable provision, and the agreement would allow severance of any such provision.

Plaintiff adds that he

had inadequate time and ability to read and agree, and opting out would be complicated after accepting the agreement, which is substantively unconscionable. Plaintiff adds that the same unconscionability applies to the severance clause, FAA provision, and overbroad scope of all claims or controversies arising out of the employer-employee relationship.

An arbitration agreement

that is a required condition of employment, with some one-sided provisions, can be unenforceable as unconscionable. (Martinez v. Master Protection Corp. (2004) 118 Cal.App.4th 107, 113-114; Fitz v. NCR Corp. (2004) 118 Cal.App.4th 702, 712-713, 721-725.) Circumstances indicating unconscionability and oppression include (1) time the party was given to consider the agreement, (2) extent and type of pressure exerted to sign, (3) length of the contract and length and complexity of challenged provisions, (4) education and experience of the party, and (5) agreement review aided by counsel. (Mills v. Facility Sols. Grp., Inc. (2022) 84 Cal.App.5th 1035, 1051.)

The absence of “authentic

informed choice,” due to the lack of straightforward, unbiased explanations of an agreement, may constitute procedural unconscionability. (Gentry v. Superior Court (2007) 42 Cal.4th 443, 470 [where employer indicated preference to arbitrate, it was likely that “nonexecutive”, lower echelon employees felt some pressure not to opt out of the agreement], overruling on other grounds recognized by Marengo v. DirecTV LLC (2015) 233 Cal.App.4th 1409, 1421.)

Limited English fluency

and education, as to terms printed in English, adequately showed procedural unconscionability. (See Orcilla v. Big Sur, Inc. (2016) 244 Cal.App.4th 982, 997.) Employers failing to translate arbitration provisions for employees, who could not read English, constituted oppression, surprise and procedural unconscionability. (See Carmona v. Lincoln Millennium Car Wash, Inc. (2014) 226 Cal.App.4th 74, 85 [“What elevates this case to a high degree of procedural unconscionability,... The ... companies hid the enforceability clause and the entire confidentiality subagreement by failing to translate that portion of the agreement into Spanish.”].)

“Even where an

arbitration provision allows a party to opt out, there may be procedural unconscionability if there is not ‘an authentic informed choice’ to make that

decision.” (Haydon v. Elegance at Dublin (2024)

97 Cal.App.5th 1280, 1288.) “[A]n opt out provision does not insulate an arbitration agreement from a finding of procedural unconscionability.” (Swain v. LaserAway Med. Grp., Inc. (2020) 57 Cal.App.5th 59, 69.)

An opinion declined to compel arbitration due to three unconscionable provisions—“(1) the broad scope of the agreement, (2) the infinite duration, and (3) the lack of mutuality in the claims that were covered by the agreement.” (Cook v. University of Southern California (2024) 102 Cal.App.5th 312, 321, 330.)

Trial courts can sever and modify unenforceable arbitration provisions where the parties had agreed to a severance clause. (Blake v. Ecker (2001) 93 Cal.App.4th 728, 746, overruled in part on other grounds by Le Francois v. Goel (2005) 35 Cal.4th 1094, 1108, fn. 5.)

Under both the FAA and California law, unconscionability may invalidate arbitration agreements. (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 125.)

Here, the Court finds unconscionability as a secondary basis to deny the Motion, given Plaintiff's Declaration showing insufficient time and excessive employer pressure to sign, without explaining or translating terms. Also, the broad scope of the agreement is substantively unconscionable due to not being limited to employment causes of action such as FEHA and Labor Code claims.

IV.

CONCLUSION

Therefore, the Court denies the Motion, for reasons set forth above.